

funds for certain charitable purposes as he might think fit, and he died without exercising the power by act *inter vivos*, but by his will gave definite directions as to the application of the funds, it was held that the power was duly exercised (*a*).]

13. **Fraud.**— There is sufficient ground for the interference of the Court, wherever the exercise of the discretion by the trustees is infected with fraud (*b*), or misbehaviour (*c*), or they decline to undertake the duty of exercising the discretion (*d*); or generally where the discretion is *mischievously and ruinously* exercised, as if a trustee be authorised to lay out money upon Government, or real or personal security, and the trust fund is outstanding upon any *hazardous* security (*e*). [But where the course pursued by the trustees is within the letter of the power, the *onus* is on the persons challenging their conduct to show that their discretion has been mischievously, or ruinously, or fraudulently exercised (*f*).]

14. **Powers in case of charity.**— And where the trustees of a *charity* were empowered to lease for three lives or thirty-one years, the Court expressed an opinion that the discretion might be controlled, if it appeared for the benefit of the charity that such a power should not be acted upon (*g*).

Cas. 795, 815; *Oceanic Steam Navigation Company v. Sutherland*, 16 Ch. D. 236;] and see *Thacker v. Key*, 8 L. R. Eq. 408.

[(*a*) *Copinger v. Crehane*, 11 I. R. Eq. 429.]

(*b*) *Attorney-General v. Governors of Harrow School*, 2 Ves. 552, per Lord Hardwicke; *Potter v. Chapman*, Amb. 99, per *eundem*; *Richardson v. Chapman*, 7 B. P. C. 318; *French v. Davidson*, 3 Mad. 402, per Sir J. Leach; *Talbot v. Marshfield*, 4 L. R. Eq. 661; and on appeal, 3 L. R. Ch. App. 622; *Thacker v. Key*, 8 L. R. Eq. 408.

(*c*) *Maddison v. Andrew*, 1 Ves. 59, per Lord Hardwicke; *Attorney-General v. Glegg*, Amb. 585, per *eundem*; *Willis v. Childe*, 13 Beav. 117; and see *Re Beloved Wilkes's Charity*,

3 Mac. & G. 440; and see *Byam v. Byam*, 19 Beav. 65.

(*d*) *Gude v. Worthington*, 3 De G. & Sm. 389. This was apparently the ground on which the case was decided, but the refusal of the trustees to act does not sufficiently appear on the report. And see *Mortimer v. Watts*, 14 Beav. 622; *Re Sanderson's Trust*, 3 K. & J. 497; *Prendergast v. Prendergast*, 3 H. L. Cas. 195; *Palmer v. Newell*, 25 L. T. N. S. 892; *Bennett v. Wyndham*, 23 Beav. 528; *Gray v. Gray*, 11 Ir. Ch. Rep. 218, 13 Ir. Ch. Rep. 404.

(*e*) *De Manneville v. Crompton*, 1 V. & B. 359; *Costello v. O'Rorke*, 3 I. R. Eq. 172; and see *Lee v. Young*, 2 Y. & C. C. C. 532.

[(*f*) *Re Brittlebank*, 30 W. R. 99.]

(*g*) *Ex parte Berkhamstead Free School*, 2 V. & B. 138.